

STATE OF NEW YORK

5386--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 13, 2025

Introduced by M. of A. BORES, YEGER, BERGER, WIEDER, EICHENSTEIN, LEE, P. CARROLL, O'PHARROW, BURROUGHS -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to reporting of hate crimes by law enforcement departments

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "hate crime
2 accountability and transparency enforcement (HATE) reporting act".

3 § 2. The executive law is amended by adding a new section 837-z to
4 read as follows:

5 § 837-z. Reporting duties of law enforcement departments with respect
6 to hate crimes. 1. Every sheriff, county or city commissioner of
7 correction and head of every state, county, or local police depart-
8 ment, shall report to the division, in a manner and timeframe as deter-
9 mined by the division, any instance or occurrence in which a hate crime,
10 as defined in section 485.05 of the penal law, is reported or investi-
11 gated. Such reports shall be transmitted to the division such that
12 the division may provide such hate crime data to the federal bureau of
13 investigation in a manner consistent with the requirements of the
14 National Incident-Based Reporting System.

15 2. The division shall promulgate rules and regulations to effectuate
16 the reporting of hate crime data to the division by law enforcement
17 departments as required pursuant to subdivision one of this section.

18 § 3. This act shall take effect January 1, 2026.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD07926-02-5